

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 25-28

COOL LIVING LLC,

COMPLAINANT,

v.

ALPI U.S.A., INC.,

ALPI AIR & SEA A/S,

RESPONDENTS.

**RESPONDENTS' MOTION FOR EXTENSION OF TIME TO ANSWER OR
OTHERWISE RESPOND TO VERIFIED COMPLAINT**

In accordance with 46 C.F.R. §§ 502.69, 502.102 and as otherwise provided by law, Respondents ALPI U.S.A., Inc. and ALPI Air & SEA A/S respectfully request a 15-day extension to answer or otherwise respond to the Verified Complaint, showing the Commission as follows:

1. Complainant Cool Living LLC filed this action on December 4, 2025. The deadline to answer or otherwise respond to the Verified Complaint is December 30, 2025, *i.e.*, 25 days of December 5, 2025—the date of service stamped on the Verified Complaint.
2. Respondents ALPI U.S.A., Inc. and ALPI Air & SEA A/S retained the undersigned counsel on Monday, December 29, 2025, to represent their interests in this action.
3. On December 29 and 30, 2025, Respondents, by and through their undersigned counsel and in accordance with 46 C.F.R. § 502.71(a), contacted counsel for Complainant, seeking an extension to answer or otherwise respond to the Verified Complaint. Complainant's

counsel confirmed on December 30, 2025, that Complainant “does not consent to the extension but does not oppose the request.”

4. “Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause. Motions must set forth the reasons for the request and be received at least seven (7) days before the scheduled filing date. Motions filed less than seven (7) days before the scheduled filing date may be considered where reasonable grounds are found for the failure to meet this requirement.” 46 C.F.R. § 502.102(a).

5. Good cause exists for a 15-day extension because: (1) Respondents’ counsel were just retained in this action on December 29, 2025—1 day before the deadline to answer or otherwise respond to the Verified Complaint; (2) the parties are engaged in efforts to resolve this action; (3) Respondents’ counsel need time to investigate and research the claims asserted in the Verified Complaint and otherwise familiarize themselves with the Commission’s rules of practice and procedure; and (4) Respondent’s custodians of documents and people with the most knowledge of the events giving rise to this action are overseas and have limited availability because of the holiday season to assist in the preparation of an answer or response to the Verified Complaint.

6. Reasonable grounds exist for not filing this motion at least 7 days before the deadline to answer or respond to the Verified Complaint because Respondents’ undersigned counsel was retained just 1 day before the deadline.

7. A 15-day extension will not adversely impact this proceeding.

8. This motion is not interposed for delay.

Respondents, therefore, respectfully request a 15-day extension (up to and through **Wednesday, January 14, 2026**) to answer or otherwise respond to the Verified Complaint and any additional relief the Commission believes is just and proper.

Dated: December 30, 2025.

/s/ Michael P. Kohler
By: Michael P. Kohler
Georgia Bar No. 427727

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Certificate of Service. I hereby certify that on the below date a genuine copy of this document was served upon the following by e-mail:

Christopher Nolan
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Attorneys for Complainant

This 30th day of December, 2025.

MILLER & MARTIN PLLC

/s/ Michael P. Kohler
By: Michael P. Kohler